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February 17, 2025

By: Hines

An Act relating to rehabilitation services; amending 74 O.S. 2021, Section 166.2, which relates to the Commission for Rehabilitation Services; expanding membership of the Commission; removing obsolete language; specifying duration and dates of terms; stipulating process for appointment of additional members; updating statutory language; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 166.2, is amended to read as follows:

Section 166.2. A. Effective July 1, 1993, there is hereby created the Commission for Rehabilitation Services, an agency of ~~the State of Oklahoma~~ this state, a body corporate and politic, with powers of government and with the authority to exercise the rights, privileges and functions as herein specified, with its lawful operations deemed to be an essential governmental function of ~~the State of Oklahoma~~ this state with all the attributes thereof.

B. The Commission shall appoint and remove the Director of the State Department of Rehabilitation Services, approve programs, policy and budget, and perform the necessary functions of a governing board for the State Department of Rehabilitation Services.

1 C. 1. The Commission shall consist of ~~three (3)~~ seven (7)
2 members, to be appointed ~~by June 15, 1993,~~ as follows:

3 a. ~~one member~~ two members shall be appointed by the
4 President Pro Tempore of the ~~Oklahoma State Senate~~ for
5 ~~a three-year term,~~

6 b. ~~one member~~ two members shall be appointed by the
7 Speaker of the ~~Oklahoma~~ House of Representatives ~~for a~~
8 ~~three-year term,~~ and

9 c. ~~one member~~ three members shall be appointed by the
10 Governor ~~for a three-year term.~~

11 2. ~~Thereafter, beginning with the expiration of the terms of~~
12 ~~the three members initially appointed, the Commission shall consist~~
13 ~~of three (3) members, appointed as follows:~~

14 a. ~~one member shall be appointed by the President Pro~~
15 ~~Tempore of the Oklahoma State Senate and shall serve a~~
16 ~~term of one (1) year,~~

17 b. ~~one member shall be appointed by the Speaker of the~~
18 ~~Oklahoma House of Representatives and shall serve a~~
19 ~~term of two (2) years, and~~

20 c. ~~one member shall be appointed by the Governor and~~
21 ~~shall serve a term of three (3) years.~~

22 3. Except as otherwise provided by this subsection, members
23 shall be appointed for terms of three (3) years. Each term shall
24

1 begin on July 1 of the respective year and end on June 30 three (3)
2 years later.

3 3. The current appointee of the Speaker of the House of
4 Representatives shall serve until June 30, 2025. The current
5 appointee of the Governor shall serve until June 30, 2026. The
6 current appointee of the President Pro Tempore of the Senate shall
7 serve until June 30, 2027.

8 4. For the purpose of expanding the Commission to seven (7)
9 members, the following additional members shall be appointed:

10 a. one member shall be appointed by the President Pro
11 Tempore of the Senate for a term beginning on July 1,
12 2025, and ending on June 30, 2027,

13 b. two members shall be appointed by the Governor, each
14 for a term beginning on July 1, 2025, and ending on
15 June 30, 2026, and

16 c. one member shall be appointed by the Speaker of the
17 House of Representatives for a term beginning on July
18 1, 2025, and ending on June 30, 2028, in addition to
19 the member the Speaker shall appoint to fill the seat
20 of the current member whose term expires on June 30,
21 2025.

22 5. Thereafter, at the expiration of the term, or termination of
23 the member's service for any reason, the original appointing
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1 authority shall appoint a successor for a term of three (3) years,
2 or for the remainder of an unexpired term.

3 D. Members of the Commission shall be knowledgeable of and have
4 concern for rehabilitation issues and disability issues; provided,
5 that such requirement shall not exclude participation of lay persons
6 as Commission members. All members shall be residents of the state
7 and qualified electors at the time of their appointment. Before
8 entering upon the duties of their office, members of the Commission
9 shall take the Constitutional oath of office and the same shall be
10 filed with the Secretary of State. A member of the Commission may
11 be reappointed to succeed himself or herself. Commission members
12 shall be reimbursed for travel expenses incurred in the performance
13 of their duties as provided in the State Travel Reimbursement Act.

14 E. The original appointing authority may remove any
15 commissioner for misconduct, incompetency or neglect of duty, after
16 giving such commissioner a written statement of charges, and
17 opportunity for a hearing.

18 SECTION 2. It being immediately necessary for the preservation
19 of the public peace, health or safety, an emergency is hereby
20 declared to exist, by reason whereof this act shall take effect and
21 be in full force from and after its passage and approval.

22 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
23 February 17, 2025 - DO PASS
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